

EXHIBIT D
BY-LAWS OF THE
BARWOOD CONDOMINIUM IV ASSOCIATION, INC.

DECLARATION OF CONDOMINIUM

FOR

BARWOOD CONDOMINIUM IV A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

Original: 3/24/78
Revisions: 2/13/86
6/19/86
2/03/87

BY-LAWS

OF

BARWOOD CONDOMINIUM IV ASSOCIATION, INC.

A corporation not for profit under
the laws of the State of Florida

1. IDENTITY. These are the By-Laws of BARWOOD CONDOMINIUM IV ASSOCIATION, INC., of Boca Raton, herein called the Association, a corporation not for profit under the laws of the State of Florida. The Association has been organized for the purpose of administering the operation and management of the condominium to be established in accordance with the Condominium Act of the State of Florida, and pursuant to the development plans set forth in the Declaration of Condominium upon the property, as it is described upon Exhibit B attached to said declaration, which entire area comprises and shall hereinafter be referred to as BARWOOD CONDOMINIUM IV A CONDOMINIUM.

1.1 The office of the Association shall be at 23249 Barwood Lane North, Boca Raton, Florida, or at such other place or places as the Board of Directors may determine from time to time.

1.2 The fiscal year shall be the calendar year.

1.3 The seal of the Association shall have inscribed thereon the name of the Association, the year of its organization and the words "corporation not for profit". Said seal may be used by causing it or a facsimile thereof to be impressed, affixed, reproduced or otherwise.

2. MEMBERSHIP AND MEMBERS' MEETINGS.

2.1 Qualification. The members of the Association shall consist of all of the record owners of units in BARWOOD CONDOMINIUM IV, A CONDOMINIUM, and such membership shall become effective immediately upon a party becoming a record title owner of a unit in the condominium.

2.2 Change of Membership. After receiving approval of the Association elsewhere required, change of membership in the Association shall be established by recording in the Public Records of Palm Beach County, Florida, an approval of transfer and a deed or other instrument establishing a record title to a unit of

BARWOOD CONDOMINIUM IV, A CONDOMINIUM, and delivery to the Association of a certified copy of each instrument, the grantee in such instrument thereby immediately becoming a member of the association in the place and stead of the prior owner. The membership of a prior owner shall thereby be terminated.

2.3 The annual members' meeting shall be held in the month of February each year, a date and time to be determined by a majority of the directors, not less than 60 days prior to the date of such meeting. The purpose of the annual meeting is to elect directors and transact any other business. (Rev. 2/3/87)

2.4 Special members' meeting shall be held at the office of the corporation whenever called by the President or Vice President or by the majority of the Board of Directors, and must be called by such officers upon receipt of a written request from members entitled to cast one-third of the votes of the entire membership. The business conducted at a special meeting shall be limited to that stated in the notice of meeting.

2.5 Notice of all members' meetings stating the time and place and the objects for which the meeting is called shall be given by the President or Vice President or Secretary, unless waived in writing. Such notice shall be written or printed and shall state the time and place and object for which the meeting is called, and shall be posted in a conspicuous place on the condominium property at least fourteen (14) days prior to such meeting. Such notice shall be given to each member not less than fourteen (14) days, nor more than sixty (60) days prior to the date set for such meeting, which notice shall be mailed or presented personally to each member within said time. If presented personally, receipt for such notice shall be signed by the member, indicating the date on which such notice was received by him. If mailed, such notice shall be deemed to be properly given when deposited in the United States mails, addressed to the member at his post office address as it appears on the records of the Association, the postage thereon prepaid. Proof of such mailing shall be given by the affidavit of the person giving the notice. Any member may, by written notice signed by such member, waive such notice, and such waiver, when filed in the records of the Association, whether before or after the holding of the meeting, shall be deemed equivalent to the giving of such notice to such member.

2.6 A Quorum at members' meetings shall consist of the presence in person or by proxy of a majority of the votes of the entire membership. The acts approved by a majority of the votes present at a meeting at which a quorum is present shall constitute the acts of the members, except where approval by a greater number of members is required by the Declaration of Condominium, the Articles of Incorporation or these By-Laws.

2.7 Voting

1. In any meeting of members, the owners of units shall be entitled to cast one vote for each unit so owned.

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2. If a unit is owned by one person his right to vote shall be established by the roster of unit owners kept by the Secretary of the Association. If a unit is owned by more than one person, or is under lease, the person entitled to cast the vote for the unit shall be designated by a certificate signed by all of the record owners of the unit according to the roster of unit owners and filed with the Secretary of the Association. If a unit is owned by a corporation, the person entitled to cast the vote for the unit shall be designated by a certificate signed by the President or Vice President and attested by the Secretary or Assistant Secretary of the corporation and filed with the Secretary of the Association. Such certificates shall be valid until revoked or until superseded by a subsequent certificate or until a change in the ownership of the unit concerned. A certificate designating the person entitled to cast the vote of a unit may be revoked by any owner thereof. If such certificate is not on file, the vote of such owners shall not be considered in determining the requirements for a quorum nor for any other purpose.

2.8 Proxies. Votes may be cast in person or by proxy. A proxy may be made by any person entitled to vote and shall be valid only for the particular meeting designated therein and must be filed with the Secretary before the appointed time of the meeting, or any adjournment thereof, provided, however, that no one person shall be designated to hold more than five (5) proxies.

2.9 Adjourned meetings. If any meeting of members cannot be organized because a quorum has not attended, the members who are present, either in person or by proxy, may adjourn the meeting from time to time until a quorum is present.

2.10 At meetings of the membership, the President shall preside, or in his absence, the Vice President shall preside, or in the absence of both, the membership shall select a chairman.

2.11 The order of business at annual members' meetings, shall be:

1. Determination of chairman of the meeting.
2. Calling of the roll and certifying of proxies.
3. Proof of notice of meeting or waiver of notice.
4. Reading and disposal of any unapproved minutes.
5. Reports of officers.
6. Reports of committees.
7. Election of inspectors of election.
8. Election of directors.
9. Unfinished business.
10. New business.
11. Adjournment.

3. DIRECTORS.

3.1 Membership. The affairs of the Association shall be managed by a board of a number of directors to be determined as follows:

1. Not less than three (3) nor more than five (5) directors initially which number shall remain the same until the Developer relinquishes control as hereinafter provided for and the first election for members of the board is held.

2. Not less than three (3) nor more than nine (9) to be elected at the first election of directors.

3. The number of directors shall remain at five (5) unless said number shall be changed by a vote of the Association membership at a meeting to be held at least six (6) months prior to the time for the election of the Board of Directors.

3.2 Election of directors shall be conducted in the following manner:

1. Election of directors shall be held at the annual members' meeting.

2. A nominating committee of five (5) members shall be appointed by the Board of Directors not less than thirty (30) days prior to the annual members' meeting. The committee shall nominate one person for each director then serving or to serve as may be adjusted by a vote of the membership as hereinabove provided for. Other nominations may be made from the floor.

3. The election shall be by ballot (unless dispensed by unanimous consent) and by a plurality of the votes cast, each person voting being entitled to cast his votes for each of as many nominees as there are vacancies to be filled. There shall be no cumulative voting.

4. Except as to vacancies provided by removal of directors by members, vacancies in the Board of Directors occurring between annual meetings of members shall be filled by the remaining directors.

5. Any director may be removed by concurrence of two-thirds of the votes of the entire membership at a special meeting of the members called for that purpose. The vacancy in the Board of Directors so created shall be filled by the members of the Association at the same meeting.

6. Provided, however, that until the Developer terminates its control of the Association pursuant to the Condominium Act, the first directors of the Association shall serve, and in the event of vacancies the remaining directors shall fill the vacancies. If there are no remaining directors, the vacancies shall be filled by the Developer.

(2) years until the second annual meeting of the members and subsequently until said director's successor is duly elected, qualified or removed in the manner elsewhere provided. However, at the first election of directors following the passage of this amendment, and on at said election, two (2) of the five (5) directors elected shall be elected for a period of one (1) year, rather than two (2) years, with the purpose that thereafter the total board shall not come up for election every year. (Rev. 2/13/86)

3.4 The organization meeting of a newly-elected Board of Directors shall be held within ten (10) days after their election at such place and time as shall be fixed by the directors at the meeting at which they were elected and no further notice of the organization meeting shall be necessary.

3.5 Regular meetings of the Board of Directors may be held at such time and place as shall be determined from time to time by a majority of the directors. Notice of regular meetings shall be given to each director, personally or by mail, telephone or telegraph at least three (3) days prior to the day named for such meeting.

3.6 Special meetings of the directors may be called by the President and must be called by the Secretary at the written request of one-third of the directors. Not less than three (3) days' notice of the meeting shall be given personally or by mail, telephone or telegraph, which notice shall state the time, place and purpose of the meeting.

3.65 Meetings of the Board of Directors shall be open to all unit owners and notices of all meetings shall be posted conspicuously forty-eight (48) hours in advance for the attention of unit owners, except in an emergency.

3.7 Waiver of notice. Any director may waive notice of a meeting before or after the meeting and such waiver shall be deemed equivalent to the giving of notice.

3.8 A quorum at directors' meetings shall consist of a majority of the entire Board of Directors. The acts approved by a majority of those present at a meeting at which a quorum is present shall constitute the acts of the Board of Directors, except where approval by a greater number of directors is required by the Declaration of Condominium, the Articles of Incorporation or these By-Laws.

3.9 Adjourned meetings. If at any meeting of the Board of Directors there be less than a quorum present, the majority of those present may adjourn the meeting from time to time until a quorum is present. At any adjourned meeting any business which might have been transacted at the meeting as originally called may be transacted without further notice.

3.10 Joinder in meeting by approval of minutes. The joinder of a director in the action of a meeting by signing and concurring in the minutes thereof shall constitute the presence of such a director for the purpose of determining a quorum.

3.11 The presiding officer of directors' meetings shall be the chairman of the board if such an officer has been elected; and if none, the President shall preside. In the absence of the presiding officer, the directors present shall designate one of their number to serve in said capacity.

3.12 The order of business at directors' meetings shall be

1. Call of roll.
2. Proof of due notice of meeting.
3. Reading and disposal of any unapproved minutes.
4. Reports of officers and committees.
5. Election of officers.
6. Unfinished business.
7. New business.
8. Adjournment.

3.13 Directors' fees, if any, shall be determined by the members.

4. Powers and duties of the Board of Directors.

4.1 All of the powers and duties of the Association existing under the Condominium Act, Declaration of Condominium, Articles of Incorporation and these By-Laws shall be exercised exclusively by the Board of Directors, its agents, contractors or employees, subject only to approval by unit owners when such is specifically required. Such powers and duties of the directors shall include, but shall not be limited to the following, subject, however, to the provisions of the Declaration of Condominium, the Articles of Incorporation and these By-Laws:

1. To purchase insurance upon the condominium properties and insurance for the protection of the Association and its members.

2. To contract for management of the Condominium and to delegate to the contractor all powers and duties of the Association except such as are specifically required by the Declaration of Condominium or these By-Laws to have approval by the Board of Directors or the members of the Association.

3. To acquire and enter into agreement whereby it acquires leaseholds, memberships, and other possessory or use interests in lands, or facilities whether or not contiguous to the lands of the condominium intended to provide for the enjoyment, recreation or other use and benefit of the unit owners, and to declare expenses in connection therewith to be common expenses.

4. To pay all costs of power, water, sewer and other utility services rendered to the condominium and not billed to the owners of the separate private units.

5. To enforce by legal means, the provisions of the Articles of Incorporation and By-Laws of the Association, the Declaration of Condominium and the regulations hereinafter promulgated governing use of the condominium properties.

6. To approve or disapprove proposed purchasers and lessees of units in the manner specified in the Declaration of Condominium.

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4.2 The Board of Directors shall adopt such rules and regulations relative to the condominium as they shall deem

necessary and proper from time to time; provided, however, that the Developer reserves the right to establish such rules and regulations until such time as the Developer terminates its control over the Association.

4.3 The undertakings, leases and contracts authorized by the initial board shall be binding upon the Association in the same manner and with the same effect as though such undertakings, leases and contracts had been authorized by the first Board of Directors, duly elected by the membership after the Developer has relinquished control of the Association, notwithstanding the fact that members of the initial Board of Directors may be directors or officers of, or otherwise associated with the Developer, or other entities doing business with the Association.

5. OFFICERS.

5.1 The executive officers of the corporation shall be a President, who shall be a director, a Vice President, who shall be a director; a Treasurer; a Secretary and an Assistant Secretary, all of whom shall be elected annually by the Board of Directors and who may be peremptorily removed by vote of the directors at any meeting by concurrence of a majority of all of the directors. Any person may hold two or more offices except that the President shall not also be the Secretary or an Assistant Secretary. The Board of Directors shall from time to time elect such other officers and designate their powers and duties as the board shall find to be required to manage the affairs of the Association.

5.2 The President shall be the chief executive officer of the Association. He shall have all of the powers and duties which are usually vested in the office of president of an association, including but not limited to, the power to appoint committees from among the members from time to time, as he may in his discretion deem appropriate, to assist in the conduct of the affairs of the Association.

5.3 The Vice President shall in the absence or disability of the President, exercise the powers and perform the duties of the President. He shall also generally assist the President and exercise such other powers and perform such other duties as shall be prescribed by the directors.

5.4 The Secretary shall keep the minutes of all proceedings of the directors and the members. He shall attend to the giving and serving of all notices to the members and directors and other notices required by law. He shall have custody of the seal of the Association and affix the same to instruments requiring a seal when duly signed. He shall keep the records of the association, except those of the Treasurer, and shall perform all other duties incident to the office of secretary of an association and as may be required by the directors or the President. The Assistant Secretary shall perform the duties of the Secretary when the Secretary is absent.

5.5 The Treasurer shall have custody of all property of the Association, including funds, securities and evidences of indebtedness. He shall keep books of account for the Association in accordance with good accounting practices, which, together with substantiating papers, shall be made available to the Board of Directors for examination at reasonable times. He shall submit a treasurer's report to the Board of Directors at reasonable intervals and shall perform all other duties incident to the office of treasurer.

5.6 The compensation of all officers and employees of the Association shall be fixed by the directors. The provision that directors' fees shall be determined by the members shall not preclude the Board of Directors from employing a director as an employee of the Association, nor preclude the contracting with a director for the management of the condominium.

6. FISCAL MANAGEMENT. The provisions for fiscal management of the Association set forth in the Declaration of Condominium and Articles of Incorporation shall be supplemented by the following provisions:

6.1 Accounts. The receipts and expenditures of the Association shall be credited and charged to accounts which shall include but not be limited to the following classifications as shall be appropriate, all of which expenditures shall be common expenses:

1. Current Expenses, which shall include all receipts and expenditures to be made within the year for which the budget is made, including a reasonable allowance for contingencies and working funds, except expenditures chargeable to reserves or to betterments. The balance in this fund at the end of the year shall be applied to reduce the assessments for current expenses for the succeeding year.

2. Reserve for deferred maintenance, which shall include funds for maintenance items which occur less frequently than annually.

3. Reserve for replacement which shall include funds for repair or replacement required because of damage, depreciation or obsolescence.

4. Betterments, which shall include the funds which may be used for capital expenditures for additional improvements of additional personal property.

5. The Board of Directors, upon a two-thirds vote of its membership shall have the authority during a budget year, to transfer funds which, in its discretion if it deems necessary to hold for the purposes of a particular account, to and for the use of another purpose in another account.

6.2 Budget. The Board of Directors shall adopt a budget for each calendar year which shall include the estimated funds required to defray the common expense and to provide and maintain funds for account and reserves including but not limited to the following, according to good accounting practices:

1. Current expense. Current expense shall include all funds and expenditures to be made within the year for which the funds are budgeted and may include a reasonable allowance for contingencies and working funds. The balance in this fund at the end of the year shall be applied to reduce the assessments for current expenses for the succeeding year, or to fund reserves

2. Reserve for Deferred Maintenance. Reserve for deferred maintenance shall include funds for maintenance items which occur less frequently than annually.

3. Reserve for Replacement. Reserve for replacement shall include funds for repair or replacement required because of damage, depreciation or obsolescence.

4. Betterments, which shall include the funds to be used for capital expenditures for additional improvements or additional personal property which will be part of the common elements, the amount for which shall not exceed Five Thousand (\$5,000.00) Dollars; provided, however, that in the expenditure of this fund no sum in excess of Two Thousand (\$2,000.00) Dollars shall be expended for a single item or purpose unless such betterment has been approved by the members of the Association, in the manner required by the Declaration of Condominium. Provided, however, that the amount for each budgeted item may be increased over the foregoing limitations when approved by condominium parcel owners entitled to cast no less than seventy-five (75%) percent of the votes of the entire membership of the Association.

5. It is further provided, that the Developer shall guarantee the budget until December 31st, 1978, and therefore, the Developer and the condominium parcels owned by it shall not be subject to assessment as provided for in the Declaration of Condominium, but instead shall be assessed and pay to the Association in lieu thereof, a sum equal to the actual amount of the operating expenditures for each calendar year, less an amount equal to the total assessments made by the Association against owners of condominium parcels (excluding those condominium parcels owned by the Developer). During the above period no provision shall be made for betterment or reserves. The Developer reserves the right, but shall not be obligated, to renew the budget guarantee on an annual basis, so long as the Developer is in control of the Association.

6. Copies of the budget and proposed assessments shall be transmitted to each member on or before December 1st, preceding the year for which the budget is made. The copy of

the budget and proposed assessments shall be mailed to each unit owner not less than thirty (30) days prior to the meeting of the Board of Directors at which the budget will be considered, together with a notice of that meeting. If the budget is subsequently amended, a copy of the amended budget shall be furnished to each member. Delivery of a copy of any budget or amended budget to each member shall not affect the liability of any member for any such assessment; neither shall delivery of a copy of such budget or amended budget be considered as a condition precedent to the effectiveness of said budget, and assessments levied pursuant thereto; and, nothing herein contained shall be construed as restricting the right of the Board of Directors, at any time in its sole discretion, to levy an additional assessment in the event that the budget originally adopted shall appear to be insufficient to pay cost and expenses of operation and management, or in the event of emergencies.

7. The provisions of the Condominium Act applicable to revision of the budget and/or recall of the Board of Directors are hereby incorporated by reference, together with all mandatory amendments to said provisions. The revision of the budget or recall of any or all members of the Board of Directors shall require a vote of sixty (60) percent of the whole number of votes of all unit owners.

6.3 Assessments for Common Expenses. Assessments against the condominium parcel owners for their share of the common expenses shall be made for the calendar year annually in advance on or before December 20th, preceding the year for which the assessments are made. Such assessments shall be due in four (4) equal quarterly installments, on the first day of January, and on the first day of each quarter thereafter of the year for which the assessments are made. If an annual assessment is not made as required, an assessment shall be presumed to have been made in the amount of the last prior assessment and monthly installments thereon shall be due upon each installment payment date until changed by an amended assessment. In the event the annual assessment proves to be insufficient, the budget and assessments therefore, may be amended at any time by the Board of Directors. The unpaid assessment for the remaining portion of the calendar year for which the amended assessment is made shall be due and payable in equal quarterly installments for the full quarter remaining in the assessment year.

6.4 Assessments for charges. Charges or special assessments by the Association, should such be required by the Board of Directors, shall be levied in the same manner as hereinbefore provided for regular assessments, and shall be payable in the manner determined by the Board of Directors.

6.5 Acceleration of assessment installments upon default. If a condominium parcel owner shall be in default in the payment of an installment upon an assessment, the Board of Directors may accelerate the remaining installments of the assessment upon

notice thereof to the condominium parcel owner, and thereupon the unpaid balance of the assessments shall come due upon the date stated in the notice, but not less than ten (10) days after delivery thereof to the condominium owner, or not less than twenty (20) days after the mailing of such notice to him by registered or certified mail, whichever shall first occur.

6.6 Assessments for emergencies. Assessments for common expenses of emergencies that cannot be paid from the annual assessments for common expenses shall be due only after thirty (30) days notice to the apartment owners concerned and shall be paid in such manner as the Board of Directors of the Association may require in the notice of assessment.

6.7 The depository of the Association shall be such bank or banks as shall be designated from time to time by the directors and in which the monies of the Association shall be deposited. Withdrawal of monies from such accounts shall be only by checks signed by such persons as are authorized by the directors.

6.8 An audit of accounts of the Association shall be made annually by an Audit Committee selected by the Board of Directors and a copy of the Audit report shall be furnished to each member not later than April 1st of the year following the year for which the audit is made. (Rev. 2/3/87)

6.9 Fidelity bonds shall be required by the Board of Directors from all persons handling or responsible for Association funds. The amount of such bonds and the sureties shall be determined by the directors. The premiums on such bonds shall be paid by the Association as a common expense.

6.10 The termination of membership in the condominium shall not relieve or release any such former owner or a member from a liability or obligation incurred under or in any way connected with the condominium during the period of such ownership and membership, or impair any rights or remedies which the Association may have against such former owner and member arising out of or in any way connected with such ownership and membership and the covenants and obligations incident thereto.

7. RULES AND REGULATIONS.

7.1 As to common elements and limited common elements. The Board of Directors may, from time to time, adopt or amend previously adopted administrative rules and regulations governing the details of the operation, use, maintenance, management and control of the common elements and limited common elements of the condominium and any facilities or services made available to the unit owners. The Board of Directors shall, from time to time, post in a conspicuous place on the condominium properties a copy of the rules and regulations adopted from time to time by the Board of Directors. The initial rules and regulations shall be as set forth upon Exhibit E to the Declaration of Condominium.

7.2 As to Condominium Units. The Board of Directors may, from time to time, adopt or amend previously adopted rules and regulations governing and restricting the use and maintenance of the condominium unit (s), provided, however, that copies of such rules and regulations are furnished to each unit owner prior to the time the same become effective, and where applicable or desirable, copies thereof shall be posted in a conspicuous place on the condominium property.

8. REGISTERS.

8.1 The Secretary of the Association shall maintain a register in the corporation office showing the names and addresses of members. It shall be the obligation of the individual members to advise the Secretary of the Association of any change of address and ownership as otherwise provided. The Association, for purposes of notification, shall have the right to rely upon the last given address of each of the members.

8.2 Any application for the transfer of a membership or for a conveyance of interest in a condominium parcel or a lease of condominium parcel shall be accompanied by an application fee in the amount of Fifty (\$50.00) Dollars to cover the cost of contacting the references given by the applicant, and such other costs of investigation that may be incurred by the Board of Directors. The Board of Directors shall have the right to increase or decrease the application fee, consistent with the provisions of Chapter 718, Florida Statutes.

8.3 The Association shall maintain a suitable register for the recording of pledged or mortgaged condominium parcels. Any pledgee or mortgagee of a condominium parcel may, but is not obligated to notify the Association in writing of the pledge or mortgage. In the event notice of default is given any member, under an application provision of the By-Laws, the Articles of Incorporation, or the Declaration, a copy of such notice shall be mailed to the registered pledgee or mortgagee.

9. AMENDMENTS TO THE BY-LAWS.

9.1 Notice of the subject matter of a proposed amendment shall be included in the notice of any meeting at which a proposed amendment is considered.

9.2 A resolution adopting a proposed amendment may be proposed by either the Board of Directors of the Association or by the members of the Association. Directors and members not present in person or by proxy at the meeting considering the amendment may express their approval in writing, providing such approval is delivered to the Secretary at or prior to the meeting. Except as elsewhere provided, such approvals must be either:

1. Not less than seventy-five (75%) percent of the entire membership of the Board of Directors and by not less than fifty-one (51%) percent of the votes of the entire membership of the Association; or

2. By not less than eighty (80%) percent of the votes of the entire membership of the Association.

9.3 Execution and Recording. A copy of each amendment shall be attached to a certificate certifying that the amendment was duly adopted as an amendment of the By-Laws, which certificate shall be executed by the officers of the Association with the formalities of a deed. The amendment shall be effective when such certificate and a copy of the amendment are recorded in the public records of Palm Beach County, Florida.

9.4 Developer. Notwithstanding the foregoing provisions of these Articles, no amendment to these By-Laws may be adopted or become effective prior to the relinquishment of control of the Association by the Developer without the prior written consent of the Developer.

10. PARLIAMENTARY RULES. Roberts' Rules of Order (latest edition) shall govern the conduct of Association meetings when not in conflict with the Declaration of Condominium, Articles of Incorporation or these By-Laws.

11. It is anticipated that the taxing authorities in taxing for real property taxes shall tax each condominium unit on a separate and distinct basis by forwarding a separate bill to each individual condominium parcel owner for his separate unit. In the event the taxing authorities do not tax individually upon each unit and one tax bill is levied, then and in such event, the Association shall divide the tax bill as a common expense for said condominium and same shall be paid by the individual condominium parcel owner of the condominium in percentage to his ownership in the common elements as stated in the subject Declaration of Condominium.

11.1 Whenever the masculine singular form of the person is used in these By-Laws, it shall be construed to mean the masculine, feminine or neuter, singular or plural, wherever the context so requires.

11.2 Should any of the covenants herein imposed be void or become unenforceable at law or in equity, the remaining provisions of the instrument shall, nevertheless, be and remain in full force and effect.

11.3 If any irreconcilable conflicts should exist, or hereafter arise, with respect to the interpretation of these By-Laws and the Declaration of Condominium, the provisions of the Declaration shall prevail.

11.4 Corporation and Association are used synonymously, and condominium parcel and unit are used synonymously herein.

12. LEASING

Leases of condominium units by owners shall be limited to one (1) lease of not less than three (3) months nor more than four (4) months during any twelve (12) month period. This is subject to the exercise of discretion by the Board of Directors to extend such period in appropriate circumstances upon application pursuant to the provisions of the Declaration of Condominium for Parwood IV Condominit

No person or persons shall occupy a leased apartment during the absence of the lessee. (Added: 6/19/86)

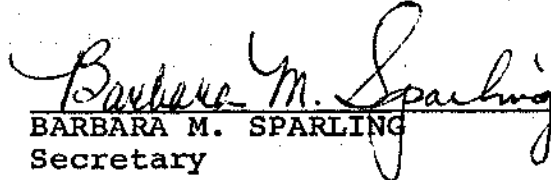
13. GUESTS WHEN UNIT OWNER IS ABSENT

A. During an owner's absence only members of the owner's immediate family (father, mother, brother, sister, owner's children and grandchildren) may be designated as guest occupants of the apartment, without any restriction as to frequency or length of stay.

B. Persons Other than Immediate Family.

Once in any twelve (12) month period persons other than immediate family may be designated as guest occupants during the owner's absence, but in no event shall such guest occupant remain in possession for a period exceeding thirty (30) days. (Added 6/19/86)

The foregoing was adopted as the By-Laws of BARWOOD CONDOMINIUM IV ASSOCIATION, INC., a corporation not for profit under the laws of the State of Florida, at the first meeting of the Board of Directors, on the 24th day of March, 1978.


BARBARA M. SPARLING
Secretary

Approved:

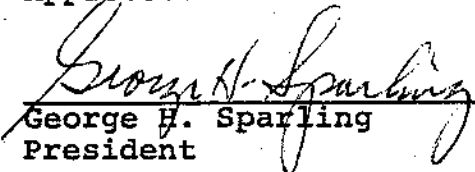

George H. Sparling
President



EXHIBIT ONE

BARWOOD CONDOMINIUM IV, A CONDOMINIUM
Approval of Transfer

Pursuant to the provisions of the Declaration of Condominium of BARWOOD CONDOMINIUM IV, A CONDOMINIUM, the BARWOOD CONDOMINIUM IV ASSOCIATION, INC., by and through its Board of Directors, has approved and does by these presents approve the transfer of that certain condominium parcel described as Unit No. , and Limited Common Element (Parking Space) No. .

FROM: _____

TO: _____

IN WITNESS WHEREOF, the Association has caused these presents to be executed this ____ day of _____, 1977.

Signed, sealed and delivered
in the presence of:

President

Secretary

(Corporate Seal)

STATE OF FLORIDA)
COUNTY OF) ss

I HEREBY CERTIFY that on this day, before me, an officer duly authorized in the State and County aforesaid to take acknowledgments, personally appeared _____ and _____, well known to me to be the _____ and _____, respectively, of the Association named in the foregoing instrument, and who acknowledged executing the same in the presence of two subscribing witnesses freely and voluntarily under authority duly vested in him by said Association.

WITNESS my hand and official seal in the County and State last aforesaid this _____ day of _____, A.D., 197 .

NOTARY PUBLIC

My Commission Expires:

PALM OFF
BEACH REC 2844 PAGE 943

EXHIBIT E
RULES AND REGULATIONS

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM IV, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

Original: 11/79
Revised: 11/85
09/15/88
03/15/89
12/01/91

BARWOOD CONDOMINIUM IV ASSOCIATION, INC.
OF BOCA RATON

RULES AND REGULATIONS

The Rules and Regulations hereinafter enumerated as to the property of Barwood Condominium IV Association, the condominium units and the condominium in general, shall be deemed in effect until amended by the Board of Directors of the Association and shall apply to and be binding upon all unit owners. The unit owners shall at all times, obey these Rules and Regulations and shall use their best efforts to see that they are faithfully observed by their families, guests, invitees, servants, lessees, persons for whom they are responsible and persons over whom they exercise control and supervision. The Board of Directors may, from time to time, adopt and amend previously adopted Rules and Regulations governing the details of the operation, use maintenance, management and control of the common elements of the condominium and any facilities or services made available to the unit owners.

1. RULES AND REGULATIONS

- A. Violations should be reported in writing to the Board of Directors or to officers of the Association.
- B. Violations will be called to the attention of the violating owners by an assigned representative of the Board of Directors.
- C. Disagreements concerning violations will be presented in writing to, and be judged by, the Board of Directors who will take appropriate action.
- D. Should you have any comments, complaints, etc., regarding the maintenance of the grounds and/or how the work is done, make your remarks to the Association president or to the maintenance supervisor. No direct comments are to be made to the maintenance worker.

THE PRINCIPAL PURPOSE AND NECESSITY OF RULES AND REGULATIONS IS TO POINT OUT TO UNIT OWNERS THAT IT IS IN THE BEST INTERESTS OF ALL UNIT OWNERS TO ACKNOWLEDGE THE RIGHTS, PRIVILEGES AND PRIVACY OF OUR NEIGHBORS. NORMAL CARE SHOULD ALWAYS BE SHOWN IN ANY ACTIVITY TO RESPECT THOSE RIGHTS.

2. FACILITIES

Refer to Barwood Improvement Association Rules & Regulations.

3. NOISE

Radio, hi-fi, and television sets should be turned down to minimum volume between the hours of 11:00 P.M. and 8:00 A.M. All other unnecessary noises, such as loud talking, slamming of car doors, honking of horns, should be avoided between these hours.

Consideration of other unit owners, at any hour, should also be exercised in the use of sliding doors. Such doors should be well and continually lubricated so they move quietly and should be pushed gently from side to side. Noise from sliding doors can be heard clearly in the apartment below. Use of washing machines should be restricted to hours between 8:00 A.M. and 7:00 P.M.

4. PETS

Pets are not permitted in condominium units unless such pets are owned by the unit owner at time of purchase. Permission for such ownership must be granted in writing by the Board of Directors.

- A. Animals owned by unit owners shall not be allowed to commit a nuisance in any portion of the condominium building or grounds, except in the area specifically designated by the Barwood Improvement Association.
- B. Authorization to keep pets expires when a pet dies or is otherwise disposed of.
- C. Pets shall include all types of animals -- dogs, cats, parrots, frogs, reptiles, turtles, etc.
- D. All pets are to be carried by the owner. If this is not physically possible, they should be restrained on a leash.
- E. Lessees, resident house guests or visitors may not at any time have a dog or other pet at the condominium.

5. OBSTRUCTIONS AND EXTERIOR APPEARANCE

Sidewalks, entrances, driveways, catwalks, elevators, stairways, must be kept open and not obstructed in any manner. No sign, notice or advertisements shall be inscribed or exposed on or at any window or other part of the condominium except as shall have been approved in writing by the Board of Directors, nor shall anything be projected out of any window without similar approval. No radio or television aerial or antenna shall be attached to, or hung from the exterior of the condominium or the roof thereon.

The exterior of the condominium shall not be painted, decorated or modified by any owner without prior consent of the Board of Directors which may be withheld on pure aesthetic grounds within their sole discretion. No awnings, window guards, light reflective materials, hurricane or storm shutters, shall be used except as approved by the Board of Directors. Patio floors may be painted any color desired or covered with carpeting, otherwise standard exterior colors shall not be altered.

6. CHILDREN

Supervision must be exercised when children are playing on the grounds. Children under fifteen (15) years of age are not permitted as residents.

7. DESTRUCTION OF PROPERTY

Owners, nor their families or guests, shall mark or in any way damage, destroy, deface any part of the building. Unit owners shall be responsible for any such damage.

8. CLEANLINESS

All garbage, refuse, trash, shall be deposited in plastic bags, and tied, and placed in the dumpsters located on the ground floor. Glass bottles must not be thrown down the chute, but are to be carried down to the dumpster.

9. CATWALKS/PATIOS

No movable objects are to be placed on catwalks. No objects shall be hung from railings of catwalks or window sills. No cloth, rugs, mops, etc., shall be hung up or shaken from catwalks. No objects shall be thrown over the railing of catwalks, nor shall any substances be swept from the catwalks over the exterior of the building.

There shall be no cooking, grilling or barbecuing on Patios or Catwalks at any time.

10. DOOR LOCKS

Members must abide by Paragraph 13.5, RIGHT OF ENTRY INTO PRIVATE DWELLINGS IN EMERGENCIES, of the Declaration of Condominium which reads as follows:

In case of any emergency originating in or threatening any Dwelling, regardless of whether the owner is present at the time of such emergency, the Board of Directors of the Association, or any other person authorized by it...shall have the right to enter such Dwelling for the purpose of remedying or abating the cause of such emergency, and such rights of entry shall be immediate.

To facilitate such entry the owner of each Dwelling is required by the Association to deposit a key to his/her unit with a unit owner of choice and so notify the Secretary. It is also recommended that if a unit owner is away for any length of time and leaves a car in their assigned parking area, that keys to that car also be left with the previously designated unit owner.

11. ATTIRE

Members, their Families, and guests shall not use the common elements or clubhouse except in appropriate attire.

12. PLUMBING

Water closets and other plumbing shall not be used for any other purpose than those for which they are constructed, and no sweeping, rubbish, rags, or other foreign substances shall be thrown therein. The cost of any damage resulting from misuse shall be borne by the unit owner.

Sinks or toilets not operating properly, and other minor plumbing problems within private units must be resolved individually. If the problem should lie in the main sewer system the Association will take care of it. However, if the Association calls a plumber for a problem connected with your apartment, be sure someone is at home until the problem is resolved.

13. ROOF

Members are not permitted on the roof for any purpose, except as authorized by the Board of Directors.

14. SOLICITATION

There shall be no solicitation by any person anywhere in the condominium for any cause, charity, or any purpose whatever unless specifically authorized by the Board of Directors.

15. PARKING

Each parking space is assigned as an appurtenance to a particular unit and shall be occupied only by a passenger car or station wagon. As such, each space may be used only by the owner, except when the owner has given written permission (with copy to Secretary) for use by another owner, lessee or resident guest. No owner may park in any space other than the one assigned without proper permission. Please make certain that your vehicles are parked within the painted lines and are pulled up close to the bumper. Be sure to keep automobile doors locked.

16. Each unit owner who plans to be absent from his unit during the hurricane season must prepare his unit prior to departure by:

- A. Removing all furniture and plants from patio.
- B. Designating a responsible firm or individual to care for unit during his absence in the event the unit should suffer damage, and furnish the Board of Directors (or Secretary) with the name of such firm or individual. The designated firm or individual shall contact the Board of Directors for permission to install or to remove shutters.
- C. Hurricane panels or shutters shall be installed only when there is indication that a hurricane may strike in this area. They may not be left on the windows for the entire season.

17. WASHING OF VEHICLES

No washing of vehicles with the hose is permitted in the garbage ramp area or parking stalls. Hose washing is permitted in parking area near tennis courts.

18. MAINTENANCE FEES & ASSESSMENTS

Maintenance fees are due and payable on the first of each month. Checks are to be made payable to: Barwood Condominium IV Association. Payments received later than the 5th day of the month are subject to a \$5.00 penalty.

19. LOCKERS

Any storage in your locker that is less than two feet from the ceiling must be removed. This is a Fire Code Regulation.

2D. LEASING OR RESALE

The Declaration of Condominium For Barwood Condominium IV Association, Inc., which is filed on record in Palm Beach County, specified how leasing or sale of condominium units shall be handled, including the following:

- A. No Owner of a dwelling shall lease or sell his condominium unit to anyone without first giving notice in writing by registered or certified mail to the Board of Directors, or by personal delivery to the Secretary or the President of the Association.
- B. The letter notifying the Association of an owner's desire to lease or sell his dwelling must state the name, address and employment or occupation of the prospective lessee or purchaser. A copy of the bona fide offer to lease or sell the dwelling must also be submitted.
- C. Application forms are available from the Association. Such application forms required by the Association for the use of its facilities shall be completely filled in and signed by the prospective lessee or purchaser. The application must be accompanied by a non-refundable administrative fee of Fifty (\$50.00) Dollars to cover the Association administration expenses.
- D. The Association shall have thirty (30) days from receipt of the information requested to decide whether it will exercise its option of first refusal and will so notify the dwelling owner in writing.
- E. The lease or sales contract must contain a covenant stating that the lessee or purchaser shall comply with all present and future Rules and Regulations of the Association.
- F. Sub-leasing by lessee is not permitted, except when the Association is the lessee.
- G. Leases of condominium units by owners shall be limited to one (1) lease of not less than three (3) months nor more than four (4) months during any twelve (12) month period. This is subject to the exercise of discretion by the Board of Directors to extend such period in appropriate circumstances upon application pursuant to the provisions of the Declaration of Condominium for Barwood IV Condominium.

No person or persons shall occupy a leased apartment during the absence of the lessee.

PLEASE NOTE:

Non-compliance with the foregoing Rules & Regulations may cause the Board of Directors to inflict a fine of \$50.00 on the unit owner, per the By-Laws of the Association.

ALSO:

Further Rules and Regulations regarding common areas -- swimming pool, Recreation Center, tennis courts and other recreation areas, as well as common parking areas, are covered in the Barwood Improvement Association's Rules and Regulations.

BY ORDER OF THE BOARD OF DIRECTORS

BARWOOD CONDOMINIUM IV ASSOCIATION, INC.

December 01, 1991

EXHIBIT F

DECLARATION OF COVENANTS AND RESTRICTIONS
FOR IMPROVEMENT AND MAINTENANCE

BARWOOD CONDOMINIUM IV A CONDOMINIUM

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM IV, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

DECLARATION OF COVENANTS AND RESTRICTIONS
FOR IMPROVEMENT AND MAINTENANCE
OF BARWOOD CONDOMINIUM

This Declaration of Covenants and Restrictions for Improvement and Maintenance (hereinafter the Declaration), made this 24th day MARCH, 19 78, by BARWOOD DEVELOPMENT CORPORATION, a Florida Corporation (hereinafter referred to as Developer), declares that the real property described in Exhibit B, to the Declaration of Condominium of Barwood Condominium IV, attached hereto and made a part hereof, which is owned by BARWOOD DEVELOPMENT CORPORATION, is and shall be held, transferred, sold, conveyed and occupied subject to the covenants, restrictions, easements, charge assessments, liens hereinafter set forth, and the provisions not in conflict with this Declaration contained in any Declaration of Condominium, hereinafter recorded submitting all or any portion of the lands described in said Exhibit B to the condominium form of ownership.

ARTICLE I

Definitions

1. The terms used in this Declaration shall have the meaning as follows or as stated in Florida Statute Chapter 718, the Condominium Act, unless the context otherwise requires:

(a) Association shall mean and refer to the Barwood Condominium Improvement Association, Inc., a Florida corporation not for profit, the By-Laws and Articles of Incorporation of which are attached to the Declaration of Condominium of Barwood Condominium IV, a condominium, hereto as Exhibit H and Exhibit I, for Maintenance and Improvement of which the Certificate of Incorporation and By-Laws of the Association make reference.

(b) Member. As used herein, the term "member" means and refers to any person, natural or corporate, who becomes a member of the Association as described in the Articles and By-Laws whether or not that person participates in the Association as a member.

(c) Unit Owner means the owner of a condominium parcel. The words apartment owner are synonymous with the words unit owner as defined herein.

(d) Institutional Mortgagee is the owner and holder of a mortgage encumbering a condominium parcel, which owner and holder of said mortgage shall be either a bank, life insurance company, federal or state savings and loan association, real estate or mortgage investment trust, or other mortgagee which shall be acceptable to the Association.

ARTICLE II

Property Subject to This Declaration

1. The real property which is and shall be held, transferred, sold, conveyed and occupied subject to this Declaration is located in Palm Beach County, Florida and is described in Exhibit B to the Declaration of Condominium of Barwood Condominium IV, a condominium, which Exhibit is, additionally, attached hereto.

2. It is contemplated that a declaration similar to this Declaration will be recorded on other real property within the general locality, and the additional real property made subject to such restrictions shall assume the same rights and obligations as contained herein.

ARTICLE III

Property Rights

1. Certain real property may be conveyed to the Association from time to time which would be for the use and benefit of all the members of Barwood Condominium Improvement Association, Inc.

2. Each member shall have a right of easement and enjoyment in and to any real property conveyed to the Association and such shall be appurtenant to and pass with title to each condominium parcel, subject to the following:

(a) the right of the Association (in accordance with its Articles and By-Laws), to borrow money for the purpose of improving such real property and in aid thereof to mortgage said properties;

(b) the right of the Association to take such steps as are reasonably necessary to protect the above-described properties against foreclosure;

(c) the right of the Association to dedicate or transfer all or any part of such real property to any public agency, authority or utility;

(d) all provisions of this Declaration and the Articles of Incorporation and By-Laws of the Association;

(e) rules and regulations governing use and enjoyment of the real property of the Association adopted by the Association.

ARTICLE IV

Maintenance Association

1. The Developer has caused to be incorporated pursuant to

Chapter 608, Florida Statutes, a corporation not for profit known as Barwood Condominium Improvements Association, Inc. in accordance with the Articles of Incorporation.

2. Membership. Every person or entity who is a record fee simple owner of a condominium parcel shall be members of the Association, provided that such person or entity who holds such interest merely as a security for the performance of an obligation shall not be a member. Membership shall be appurtenant to and may not be separated from ownership of any Unit.

3. Voting. Members shall have such voting rights as are set out in the Articles of Incorporation of the Association.

ARTICLE V

Covenants for Improvements and Maintenance Assessments

1. Barwood Development Corporation, for itself, and for each condominium parcel which it owns within the real property described in aforesaid Exhibit B, hereby covenants, and each unit owner (by acceptance of a deed, whether or not it shall be so expressed in such deed or other form of conveyance) including any purchaser at a judicial sale, shall hereafter be deemed to covenant and agree to pay to the Association: (a) any annual assessments or charges; and (b) any special assessments for capital improvements or major repair. Each assessment shall be a personal obligation of the unit owner and shall be a lien against the condominium parcel.

2. The assessments levied and collected by the Association shall be used for the purpose of promoting the recreation and social welfare of the unit owners and condominium associations within the area described in Exhibit (1) to this Declaration of Covenants and Declarations.

3. The annual assessment which shall be payable in monthly installments and all special assessments shall be fixed and established by the Board of Directors in accordance with the projected budget, or special financial needs of the Association.

4. The monthly installments of the annual assessment shall commence on a date fixed by the Board of Directors. The due date of any annual or special assessment shall be established in the Board of Directors' resolution authorizing such assessment.

5. The Board of Directors of the Association shall fix the date of commencement and the amount of each assessment against each unit owner at least thirty (30) days in advance of such due date or period, and shall maintain an Association Lien Book listing the assessments and the properties so assessed, which shall be available for inspection by any member of the Association during normal business

hours. Written notice of each assessment shall be sent to every member subject to the assessment within ten (10) days of the resolution fixing the assessment. The Association shall upon demand at any time furnish to any unit owner liable for said assessment a certificate in writing signed by an officer of the Association, setting forth whether said assessment has been paid. Such certificate shall be conclusive evidence of payment of any assessment therein stated to have been paid.

6. If the assessments are not paid on the date when due, such assessment shall then become delinquent and shall, together with such interest thereon and cost of collection thereof, thereupon becoming a continuing lien on the property which shall bind such property in the hands of the then unit owner, his heirs, devisees, personal representatives and assigns, and shall also be the continuing personal obligation of the unit owner against whom the assessment is levied. The lien of the assessments provided for herein shall be subordinate to the lien of any institutional mortgage or mortgages now or hereafter placed upon a condominium parcel subject to assessment; provided, however, that such subordination shall apply only to the assessments which have become due and payable prior to a sale or transfer of such condominium parcel pursuant to a decree of foreclosure, or any other proceeding in lieu of foreclosure. No sale or transfer shall relieve any condominium parcel from liability for any assessments thereafter becoming due, nor for the lien of any such subsequent assessment. The written opinion of the Association that the lien is subordinate to a mortgage shall be dispositive of any question of subordination.

If a special assessment or a monthly installment of annual assessment is not paid within ten (10) days after the delinquency date, the unpaid assessments shall bear interest from the date of delinquency at the rate of ten (10) percent per annum, and the Association may bring an action to foreclose the lien against the property, in like manner as a foreclosure of a mortgage on real property, and/or a suit on the personal obligation against the unit owner, and there shall be added to the amount of such assessment the costs of preparing and filing the complaint in such action, and in the event a judgment is obtained, such judgment shall include interest on the assessment as above provided and reasonable attorney's fee to be fixed by the court together with the costs of the action.

ARTICLE VI

Miscellaneous

1. Duration. The Covenants and Restrictions in this Declaration shall run with and bind the land and shall inure to the benefit of and be enforceable by the Association or the unit owner of any condominium parcel subject to this Declaration, their respective legal

representatives, heirs, successors and assigns; provided, however, that the same may be changed by the vote of the members of three-fourth (3/4) of the units agreeing to amend, modify or terminate said Covenants and Restrictons in whole or in part.

2. Notices. Any notice required to be sent to any member under the provisions of this Declaration shall be deemed to have been properly sent when mailed post-paid to the last known address of the persons who appears as a member or unit owner on the records of the Association at the time of such mailing.

3. Severability. Invalidation of any one of these Covenants or Restrictions by judgment or court order shall in no ways affect any other provisions which shall remain in full force and effect.

4. Amendment. This Declaration may be amended at any time and from time to time upon the vote of members holding not less than three-fourths (3/4) of the voting interest of the membership, provided that so long as Barwood Development Corporation holds title to any real property affected by this Declaration, Barwood Development Corporation's consent must be obtained in writing. Any such amendment shall be evidenced by an instrument executed by the proper officers of the Association and recorded in the Public Records of Palm Beach County, Florida.

5. Effective Date. This Declaration shall become effective upon recordation in the Public Records of Palm Beach County, Florida.

Executed as of the date first above written.

BARWOOD DEVELOPMENT CORPORATION

By:

George H. Sparling
GEORGE H. SPARLING, Pres.

Attest:

Barbara M. Sparling
BARBARA M. SPARLING, Sec.

STATE OF FLORIDA)
 : ss
COUNTY OF PALM BEACH)

On this day personally appeared before me, the undersigned authority GEORGE H. SPARLING and BARBARA M. SPARLING, as President and Secretary, respectively, of Barwood Development Corporation, a Florida corporation, and they acknowledged before me that they

executed the foregoing Declaration of Covenants and Restrictions as such officers of said corporation and they affixed thereto the official seal of said corporation and that the foregoing instrument is the act and deed of said corporation.

WITNESS my hand and official seal at Boca Raton, Florida in said County and State las aforesaid, this 23 day of March, 1978

NOTARY PUBLIC STATE OF FLORIDA AT LARGE
MY COMMISSION EXPIRES JULY 20 1981
BONDED THRU GENERAL INS. UNDERWRITERS

Barbara J. Neumann
NOTARY PUBLIC

Signed, sealed and delivered
in the presence of:

Boca Raton Federal Savings
& Loan Association of Boca
Raton, Florida.

Dorothy A. Pearson

By: Arthur S. Martell

Cheryl W. Lollinger

Attest: Barbara J. Neumann

STATE OF FLORIDA)
:ss
COUNTY OF PALM BEACH)

PERSONALLY APPEARED before me, the undersigned authority,
Arthur S. Martell as Vice President
of the Boca Raton Federal Savings & Loan Association of Boca
Raton, Florida, who after first being duly sworn, deposes and
says that he executed the foregoing Joinder of Mortgage for
the uses and purposes therein expressed as such officer.

WITNESS my hand and official seal in the aforesaid County
and State, this 24th day of March, 1978.

Wayle McDonald
NOTARY PUBLIC

NOTARY PUBLIC STATE OF FLORIDA AT LARGE
MY COMMISSION EXPIRES AUG 11 1981
BONDED THRU GENERAL INS. UNDERWRITERS

JOHN A. GRANT, JR., INC.
Consulting Engineers
3333 North Federal Highway
Boca Raton, Florida 33431

Sheet 1 of 4
JG 100-1948
June 23, 1977

BUILDING AREA 1-A-5
LEGAL DESCRIPTION

A parcel of land lying in Section 31, Township 47 South, Range 42 East, Palm Beach County, Florida, being a portion of Block "A", PLAT I of BARWOOD as recorded in Plat Book 31, Pages 24-25 of the Public Records of Palm Beach County, Florida, and a portion of PLAT II of BARWOOD as recorded in Plat Book 33, Pages 27-28 of the Public Records of Palm Beach County, Florida, said parcel being more particularly described as follows:

Commencing at the centerline intersection of Southwest 66th Avenue and Southwest 19th Street, as shown on the plat of Sandalfoot Cove, Section One, as recorded in Plat Book 28, Pages 225 and 226, Public Records of Palm Beach County, Florida; thence along the centerline of said Southwest 19th Street, N. $89^{\circ} 05' 05''$ E., a distance of 205.00 feet to a point at the beginning of a curve, from which the radius point bears S. $0^{\circ} 54' 55''$ E., 446.41 feet; thence easterly, along said curve, an arc distance of 271.33 feet to a point; thence along a radial line of said curve, N. $33^{\circ} 54' 32''$ E., a distance of 40.00 feet; thence S. $56^{\circ} 05' 28''$ E., a distance of 385.96 feet; thence N. $28^{\circ} 08' 29''$ E., a distance of 401.51 feet; thence N. $36^{\circ} 52' 12''$ E., a distance of 267.77 feet to a point at the beginning of a curve from which the radius point bears S. $53^{\circ} 07' 48''$ E., a distance of 100.00 feet; thence northeasterly along said curve, an arc distance of 164.05 feet to a point; thence S. $49^{\circ} 08' 05''$ E., a distance of 222.24 feet to a point of curvature; thence with a curve to the right having a radius of 900.00 feet, an arc length of 248.73 feet to the Point of Beginning of the herein described parcel of land; thence continuing along the aforementioned curve to the right having a radius of 900.00 feet, an arc length of 255.57 feet to a point; thence with a bearing of S. $17^{\circ} 01' 49''$ E. a distance of 50.00 feet to a point, being the easternmost corner of Plat I of Barwood; thence with a bearing of S. $72^{\circ} 58' 11''$ W., a distance of 88.65 feet to a point; thence with a bearing of S. $68^{\circ} 36' 00''$ W., a distance of 99.19 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 188.00 feet to a point; thence with a bearing of S. $68^{\circ} 36' 00''$ W., a distance of 22.25 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 75.55 feet to a point; thence with a curve to the left having a radius of 187.75 feet, an arc length of 45.53 feet to a point; thence with a bearing of N. $54^{\circ} 42' 17''$ E., a distance of 22.25 feet to a point; thence with a curve to the right having a tangent bearing of S. $35^{\circ} 17' 43''$ E., a radius of 210.00 feet, an arc length of 37.77 feet to a point;

BUILDING AREA 1-A-5 (Continued)

thence with a bearing of N. $65^{\circ} 00' 34''$ E., a distance of 110.59 feet to a point; thence with a bearing of N. $56^{\circ} 42' 00''$ E., a distance of 66.12 feet more or less to the Point of Beginning.

Containing 1.308 Acres, more or less and subject to easements and rights-of-way or record.

ALSO subject to an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length of 67.20 feet to a point; thence with a bearing of N. $46^{\circ} 53' 58''$ E., a distance of 77.9 feet to a point; thence with a bearing of S. $43^{\circ} 06' 02''$ E., a distance of 77.5 feet to a point; thence with a curve to the right having a radius of 222.50 feet, an arc length of 70.33 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned curve to the right having a radius of 222.50 feet, an arc length of 13.94 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 18.85 feet to a point designated as Point "C"; thence continuing along the aforementioned course of S. $21^{\circ} 24' 00''$ E., a distance of 244.70 feet more or less to the end of the centerline of the subject easement.

ALSO Beginning at the aforementioned Point "C"; thence with a bearing of S. $68^{\circ} 36' 00''$ W., a distance of 34.75 feet more or less to the end of the centerline of the 25 foot wide subject easement.

ALSO subject to a Utility Easement as shown on Plat 1 of Barwood, as recorded in Plat Book 31, Pages 24 and 25, Public Records, Palm Beach County, Florida.

TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 200.80 feet to a point of compound curvature; thence with a curve to the left having a radius of 86.67 feet, an arc length

BUILDING AREA 1-A-5 (Continued)

of 67.20 feet to a point; thence with a bearing of N. $46^{\circ} 53' 58''$ E., a distance of 25.00 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course a distance of 52.9 feet to a point; thence with a bearing of S. $43^{\circ} 06' 02''$ E., a distance of 77.5 feet to a point; thence with a curve to the right having a radius of 222.50 feet, an arc length of 70.3 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat I of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 25.00 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of S. $72^{\circ} 03' 51''$ E., a distance of 21.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 86.42 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 119.70 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet more or less to the end of the centerline of the subject easement.

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North as shown on Plat I of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Land North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 16.92 feet to the Point of Beginning of the centerline of the subject easement; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 281.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 104.25 feet more or less to the end of the centerline of the subject easement.

BUILDING AREA 1-A-5 (Continued)

ALSO TOGETHER WITH an easement for ingress-egress, 25 feet in width, whose centerline is described as follows:

Commencing at the centerline intersection of Southwest 18th Street and Barwood Lane North, as shown on Plat 1 of Barwood as recorded in Plat Book 31, Pages 24 and 25, Public Records of Palm Beach County, Florida; thence with a bearing of N. $19^{\circ} 01' 23''$ E., along the centerline of Barwood Lane North a distance of 300.00 feet to a point of curvature; thence with a curve to the left having a radius of 650.00 feet, an arc length of 12.33 feet to a point; thence radially with a bearing of S. $72^{\circ} 03' 51''$ E., a distance of 46.67 feet to a point; thence with a curve to the left having a radius of 35.00 feet, an arc length of 24.03 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 16.92 feet to a point; thence with a bearing of S. $21^{\circ} 24' 00''$ E., a distance of 281.00 feet to a point; thence with a bearing of N. $68^{\circ} 36' 00''$ E., a distance of 104.25 feet to the Point of Beginning of the centerline of the subject easement; thence continuing along the aforementioned course of N. $68^{\circ} 36' 00''$ E., a distance of 34.75 feet to a point; thence with a bearing of N. $21^{\circ} 24' 00''$ W., a distance of 156.00 feet more or less to the end of the centerline of the subject easement.

EXHIBIT G

DECLARATION OF COVENANTS AND RESTRICTIONS
FOR IMPROVEMENT AND MAINTENANCE
RECREATION FACILITIES, BARWOOD CONDOMINIUM IV

DECLARATION OF CONDOMINIUM
FOR
BARWOOD CONDOMINIUM IV, A CONDOMINIUM
PALM BEACH COUNTY, FLORIDA

DECLARATION OF COVENANTS AND RESTRICTIONS
FOR IMPROVEMENT AND MAINTENANCE

This Declaration of Covenants and Restrictions for Improvement and Maintenance (hereinafter the Declaration), made this 24th day of March, 1978, by BARWOOD DEVELOPMENT CORPORATION, a Florida corporation (hereinafter referred to as Developer), declares that the real property described in Exhibit 1, attached hereto and made a part hereof, which is owned by BARWOOD DEVELOPMENT CORPORATION, is and shall be held, transferred, sold, conveyed and occupied subject to the covenants, restrictions, easements, charges, assessments, and liens hereinafter set forth, and the provisions not in conflict with this Declaration contained in any Declaration of Condominium, hereinafter recorded submitting all or any portion of the lands described in Exhibit 2 to the condominium form of ownership.

ARTICLE I

Definitions

1. The terms used in this Declaration shall have the meaning as follows or as stated in Florida Statute 711, as amended, the Condominium Act, unless the context otherwise requires.

(a) Association shall mean and refer to the Barwood Condominium Improvement Association, Inc., a Florida corporation not for profit, the By-Laws, and Articles of Incorporation of which are attached hereto as Exhibit H and I, respectively.

(b) Member. As used herein, the term "member" means and refers to any person, natural or corporate, who becomes a member of the Association as described in the Articles of Incorporation and By-Laws whether or not that person participates in the Association as a member.

(c) Unit Owner means the owner of a condominium parcel. The words "apartment owner" are synonymous with the words "unit owner" as defined herein.

(d) Institutional Mortgage is the owner and holder of a mortgage encumbering a condominium parcel, which owner and holder of said mortgage shall be either a bank, life insurance company, federal or state savings and loan association, real estate or mortgage investment trust, or other mortgagee which shall be acceptable to the Association.

ARTICLE II

Property Subject to This Declaration

1. The real property which is and shall be held, transferred, sold, conveyed and occupied subject to this Declaration is located in Palm Beach County, Florida, and is described in Exhibit I, attached hereto.

ARTICLE III

Property Rights

1. Certain real property may be conveyed to the Association from time to time which would be for the use and benefit of all the members of Barwood Condominium Improvement Association, Inc.

2. Each member shall have a right of easement and enjoyment in and to any real property conveyed to the Association and such shall be appurtenant to and pass with title to each condominium parcel, subject to the following:

(a) The right of the Association (in accordance with its Articles and By-Laws), to borrow money for the purpose of improving such real property and in aid thereof to mortgage said properties;

(b) The right of the Association to take such steps as are reasonably necessary to protect the above-described properties against foreclosure;

(c) The right of the Association to dedicate or transfer all or any part of such real property to any public agency, authority or utility;

(d) All provisions of this Declaration and the Articles of Incorporation and By-Laws of the Association; and

(e) Rules and regulations governing use and enjoyment of the real property of the Association adopted by the Association.

ARTICLE IV

Maintenance Association

1. The Developer has caused to be incorporated pursuant to Chapter 617, Florida Statutes, a corporation not for profit, known as Barwood Condominium Improvement Association, Inc., in accordance with the Articles of Incorporation.

2. Membership. Every person or entity who is a record fee simple owner of a condominium parcel in the real property identified pursuant to attached Exhibit 2, shall be members of the Association provided that such person or entity who holds such interest merely as a security for the performance of an obligation shall not be a member. Membership shall be appurtenant to and may not be separated from ownership of any Unit.

3. Voting. Members shall have such voting rights as are set out in the Articles of Incorporation of the Association.

ARTICLE V

Covenants for Improvements and Maintenance Assessments

1. Barwood Development Corporation, for itself, and for each condominium parcel which it owns within the real property described in Exhibit 2 hereby covenants, and each unit owner (by acceptance of a deed, whether or not it shall be so expressed in such deed or other form of conveyance) including any purchaser at a judicial sale, shall hereafter be deemed to covenant and agree to pay to the Association: (a) any annual assessments or charges; and (b) any special assessments for capital improvements or major repair. Each assessment shall be a personal obligation of the unit owner and shall also be a lien against the condominium parcel.

2. The assessments levied and collected by the Association shall be used for the purpose of promoting the recreation and social welfare of the unit owners and condominium associations within the area described in Exhibit 2.

3. The annual assessment which shall be payable in monthly installments and all special assessments shall be fixed and established by the Board of Directors in accordance with the projected budget, or special financial needs of the Association.

4. The monthly installments of the annual assessment shall commence on a date fixed by the Board of Directors. The due date of any annual or special assessment shall be established in the Board of Directors resolution authorizing such assessment.

5. The Board of Directors of the Association shall fix the date of commencement and the amount of each assessment against each unit owner at least thirty (30) days in advance of such due date or period, and shall maintain an Association Lien Book listing the assessments and the properties so assessed, which shall be available for inspection by any member of the Association during normal business hours. Written notice of each assessment shall be sent to every member subject to the assessment within ten (10) days of the resolution fixing the assessment. The Association shall upon demand at any time furnish to any unit owner liable for said assessment a certificate in writing signed by an officer of the Association, setting forth whether said assessment has been paid. Such certificate shall be conclusive evidence of payment of any assessment therein stated to have been paid.

6. If the assessments are not paid on the date when due, such assessment shall then become delinquent and shall, together with such interest thereon and cost of collection thereof, thereupon becoming a continuing lien on the property which shall bind such property in the hands of the then unit owner, his heirs, devisees, personal representatives and assigns, and shall also be the continuing personal obligation of the unit owner against whom the assessment

is levied. The lien of the assessments provided for herein shall be subordinate to the lien of any institutional mortgage or mortgages now or hereafter placed upon a condominium parcel subject to assessment; provided, however, that such subordination apply only to the assessments which have become due and payable prior to a sale or transfer of such condominium parcel pursuant to a decree of foreclosure, or any other proceeding in lieu of foreclosure. No sale or transfer shall relieve any condominium parcel from liability for any assessments thereafter becoming due, nor for the lien of any such subsequent assessment. The written opinion of the Association that the lien is subordinate to a mortgage shall be dispositive of any question of subordination.

If a special assessment or a monthly installment of annual assessment is not paid within ten (10) days after the delinquency the unpaid assessments shall bear interest from the date of delinquency at the rate of ten (10) percent per annum, and the Association may bring an action to foreclose the lien against the property, in like manner as a foreclosure of a mortgage on real property, and/or a suit on the personal obligation against the unit owner, and there shall be added to the amount of such assessment the costs of preparing and filing the complaint in such action, and in the event a judgment is obtained, such judgment shall include interest on the assessment as above provided and reasonable attorneys' fee to be fixed by the court together with the costs of the action.

ARTICLE VI

Miscellaneous

1. Duration. The Covenants and Restrictions in this Declaration shall run with and bind the land and shall inure to the benefit of and be enforceable by the Association or the unit owner of any condominium parcel subject to this Declaration, their respective legal representatives, heirs, successors and assigns; provided, however, that the same may be changed by the vote of the members of three-fourths of the units agreeing to amend, modify or terminate said covenants and restrictions in whole or in part.

2. Notices. Any notice required to be sent to any member under the provisions of this Declaration shall be deemed to have been properly sent when mailed post-paid to the last known address of the persons who appear as a member or unit owner on the records of the Association at the time of such mailing.

3. Severability. Invalidation of any one of these Covenants or Restrictions by judgment or court order shall in no wise affect any other provisions which shall remain in full force and effect.

4. Amendment. This Declaration may be amended at any time and from time to time upon the vote of members holding not less than three-fourths of the voting interest of the membership, provided that so long as Barwood Development Corporation hold title to any real property affected by this Declaration, Barwood Development Corporation's consent must be obtained in writing. Any such amendment shall be evidenced by an instrument executed by the proper

officers of the Association and recorded in the Public Records of Palm Beach County, Florida.

5. Effective Date. This Declaration shall become effective upon recordation in the Public Records of Palm Beach County, Florida.

Executed as of the date first above written.

BARWOOD DEVELOPMENT CORPORATION

By George H. Sparling
GEORGE H. SPARLING, President

ATTEST: Barbara M. Sparling
BARBARA M. SPARLING, Secretary

STATE OF FLORIDA

COUNTY OF PALM BEACH

On this day personally appeared before me, the undersigned authority, GEORGE H. SPARLING and BARBARA M. SPARLING, as President and Secretary, respectively, of Barwood Development Corporation, a Florida corporation, and they acknowledged before me that they executed the foregoing Declaration of Covenants as such officers of said corporation and that they affixed thereto the official seal of said corporation and that the foregoing instrument is the act and deed of said corporation.

WITNESS my hand and official seal at Boca Raton, in the County and State last aforesaid, this 25 day of ~~December~~, 1977.
March, 1978.

Barbara J. Neumann
Notary Public, State of Florida

My Commission Expires:

NOTARY PUBLIC STATE OF FLORIDA AT LARGE
MY COMMISSION EXPIRES JULY 20 1981
BONDED thru GENERAL INS. UNDERWRITERS